

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

DONNA KATRI WYNDER, *Claimant*

v.

RYAN SIMS; SIMS, WATERS & ASSOCIATES, INC. D/B/A
SUNSHINE GLOBAL TRANSPORT; MOHAMMAD MADI; DEBRA
CAESH D/B/A SEA & SHORE SHIPPING, INC., *Respondents*.

DOCKET NO. 1962(F)

Served: February 28, 2019

BEFORE: Clay G. GUTHRIDGE, *Administrative Law Judge*.

NOTICE OF VOLUNTARY DISMISSAL

On October 25, 2018, the Commission received a complaint from Donna Katri Wynder. The Office of the Secretary docketed the filing as an informal complaint pursuant to 46 C.F.R. Subpart S and issued a Notice of Filing of Small Claims Complaint and Assignment for the proceeding. The Office of the Secretary assigned the proceeding to the Chief Administrative Law Judge for appointment of a Small Claims Officer. 46 C.F.R. § 502.301(b). On November 19, 2018, respondents Ryan Sims and Sims, Waters & Associates, Inc. d/b/a Sunshine Global Transport filed an objection to proceeding informally; therefore, the proceeding was assigned to the undersigned for adjudication as a formal proceeding under 46 C.F.R. Subpart T. 46 C.F.R. § 502.311.

The Complaint alleges that respondents Ryan Sims, Sims, Waters & Associates, Inc., Mohammad Madi, and Debra Caesh d/b/a Sea & Shore Shipping, Inc., violated 46 U.S.C. § 41102(c) of the Shipping Act in connection with the transportation of Wynder's vehicle from the United States to Nigeria. Wynder seeks damages in the amount of \$11,600 representing the declared value of the car and the \$1,600 ocean freight paid for shipping. (Complaint at 6.)

Ryan Sims and Sims, Waters & Associates, Inc., filed a motion to dismiss and Sea & Shore Shipping, Inc., filed a motion to dismiss through its president and owner, Iman Mustapha Safa. Respondent Mohammad Madi has not answered or otherwise responded to the Complaint.

On February 27, 2019, the parties sent a Stipulation of Dismissal of Complaint to the Small Claims Officer at judges@fmc.gov. Because this case has been converted from a small claims proceeding under Subpart S to a formal proceeding under Subpart T, the Stipulation should have been filed with the Secretary. *Donna Katri Wynder v. Ryan Sims; Sims, Waters & Associates, Inc. d/b/a Sunshine Global Transport; Mohammad Madi; Debra Caesh d/b/a Sea & Shore Shipping, Inc.*, FMC No. 1962(F) (ALJ Nov. 20, 2018) (Notice of Assignment to

Administrative Law Judge). This office has forwarded the Stipulation to the Secretary for docketing.

The Stipulation states:

1. The parties hereto agree to and stipulate to the dismissal of Claimant's complaint (Docket No. 1962(F)).
2. All parties hereto certify that no settlement on the merits was reached.
3. All parties hereto agree and stipulate that this dismissal is final and with prejudice.
4. All parties hereto agree to bear their own attorneys fees and costs incurred in this matter.

(Stipulation of Dismissal at 1.) The Stipulation is signed by Donna Katri Wynder for herself, Ryan Sims for himself, Myra Sims for Sims, Waters & Associates, Inc., and Iman Safa for Sea & Shore Shipping, Inc. Wynder also sent an email to counsel for Ryan Sims and Sims, Waters & Associates, Inc., stating that she agreed to the terms of the dismissal and had signed it. Respondent Mohammad Madi did not sign the stipulation.

The Commission Rule governing dismissals states:

(a) *Voluntary dismissal.* (1) *By the complainant.* When no settlement agreement is involved, the complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision. Unless the notice or stipulation states otherwise, the dismissal is without prejudice.

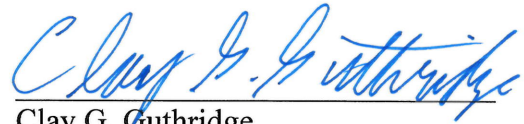
(2) *By stipulation of the parties.* The parties may dismiss an action at any point without an order from the presiding officer by filing a stipulation of dismissal signed by all parties who have appeared. In the stipulation the parties must certify that no settlement on the merits was reached. Unless the stipulation states otherwise, the dismissal is without prejudice.

46 C.F.R. § 502.72(a). Although this Rule is not explicitly applicable in Subpart T proceedings, *see* 46 C.F.R. § 502.321, I will consider its provisions when considering how this case should proceed.

Respondent Madi has not served an answer, a motion to dismiss, or a motion for summary decision. By signing the Stipulation, Complainant Wynder has certified that "no settlement on the merits was reached." (Stipulation of Dismissal at 1.) Therefore, the Stipulation serves to dismiss the case against Madi pursuant to 46 C.F.R. § 502.72(a)(1). The dismissal is with prejudice.

Respondents Ryan Sims, Sims, Waters & Associates, Inc., and Sea & Shore Shipping, Inc., did appear and filed motions to dismiss. They agree to and stipulate to the dismissal and certify that no settlement on the merits was reached. Therefore, the Stipulation serves to dismiss the case against Ryan Sims, Sims, Waters & Associates, Inc., and Sea & Shore Shipping, Inc., pursuant to 46 C.F.R. § 502.72(a)(2). The dismissal is with prejudice.

Therefore, the above-captioned proceeding is discontinued.



Clay G. Guthridge
Administrative Law Judge